

12.	26CV0942	GREGORY SWIFT VS. FCA US, LLC ET AL
DEMURRER/MOTION TO STRIKE		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

This matter is before the Court on two motions filed by Defendant, FCA US, LLC (“Defendant”): 1) Demurrer; and 2) Motion to Strike.

DEMURRER

Pursuant to Code of Civil Procedure §§ 430.10(e) and 430.10(f), Defendant demurs to Plaintiff’s Complaint. On July 13, 2026, Plaintiff, Gregory Swift (“Plaintiff”), filed an opposition. On July 16, 2026, Defendant filed a reply.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Steven D. Park, counsel attempted to meet and confer with Plaintiff prior to filing, but the dispute could not be resolved.

Background

On March 5, 2025, Plaintiff filed a Complaint for Violations of Statutory Obligations against Defendants, FCA US, LLC; Thompsons Chrysler Dodge Jeep Ram; and Does 1 through 10, for: 1) Violation of Subdivision (D) of Civil Code Section 1793.2 (against Defendant FCA); 2) Violation of Subdivision (B) of Civil Code Section 1793.2 (against Defendant FCA); 3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2 (against Defendant FCA); 4) Breach of the Implied Warranty of Merchantability (Civ. Code § 1971.1; § 1794; § 1795.5) (against Defendant FCA); 5) Negligent Repair (against Defendant Thompsons); and 6) Fraudulent Inducement Concealment (against Defendant FCA).

Plaintiff asserts on or around June 29, 2020, Plaintiff entered into a warranty contract with Defendant FCA regarding a 2020 Ram 1500 (“Subject Vehicle”) which was manufactured and distributed by Defendant FCA. The warranty contract contained various warranties, including, but not limited to, bumper-bumper warranty, powertrain warranty, emission warranty, etc. Plaintiff pleads the Subject Vehicle constitutes “consumer goods” under the Song-Beverly Consumer Warranty Act Civil Code sections 17900 et seq., as it constitutes has been used primarily for family or household purposes. Plaintiff revokes acceptance of the Subject Vehicle pursuant to Civil Code § 1794 et seq by filing the Complaint and/or did so prior to filing the instant Complaint.

Plaintiff alleges the causes of action arise out of the warranty obligations of Defendant FCA in connection with a motor vehicle for which Defendant FCA issued a written warranty. Within the express warranty period, defects and nonconformities to warranty manifested themselves, including, but not limited to, engine defects, transmission defects, electrical defects, etc. which have substantially impaired the use, value, or safety of the Subject Vehicle. The value of the Subject Vehicle is worthless and/or de minimis.

Plaintiff believes that Defendant FCA knew about Subject Vehicle’s defects but failed to disclose this to Plaintiff at the time of sale and thereafter.

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff’s ability to prove those allegations.” (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d

gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank, *supra*, 39 Cal.3d at p. 318.)

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Discussion

1. First, Second, and Third Causes of Action:

Defendant argues that Plaintiff’s claims are time-barred pursuant to the four-year statute of limitations for breach of warranty claims under Commercial Code § 2725. Defendant asserts that Plaintiff purchased the vehicle in June 2020 but waited until March 2025 to file the underlying lawsuit. Defendant contends that the facts alleged in the Complaint do not support tolling or delayed discovery and the warranty-based claims are *prima facie* untimely. Defendant further argues that the Basic Limited Warranty does not assure a defect-free vehicle and it contemplates the possibility of defect. Such a warranty offers to repair or replace covered defects within a stated period, it is not a future performance guarantee, and as such, the discovery rule does not apply.

Plaintiff argues that the claims are not time-barred as they did not accrue at delivery of the vehicle, but rather when the breach was or should have been delivered. The Complaint alleges that discovery occurred shortly before suit. In addition, under the Repair Doctrine and Delayed Discovery Rule, Plaintiff could not have known of the breach until the defects occurred after Defendant’s unsuccessful attempts to repair them.

Commercial Code § 2725 provides:

(1) An action for breach of any contract for sale **must be commenced within four years after the cause of action has accrued**. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.

(2) **A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, *except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.***

(3) Where an action commenced within the time limited by subdivision (1) is so terminated as to leave available a remedy by another action for the same breach such other action may be commenced after the expiration of the time limited and within six months after the termination of the first action unless the termination

resulted from voluntary discontinuance or from dismissal for failure or neglect to prosecute.

(4) This section does not alter the law on tolling of the statute of limitations nor does it apply to causes of action which have accrued before this code becomes effective. (emphasis added)

The Basic Limited Warranty at issue includes, in part (Complaint, Ex. A):

B. What is Covered: The Basic Limited Warranty **covers the cost of all parts and labor needed to repair any item on your vehicle when it left the manufacturing plant that is defective in material, workmanship or factory preparation.** There is no list of covered parts since the only exceptions are the items listed in "section 2.1 C". These warranty repairs or adjustments, including all parts and labor connected with them, will be made by an authorized dealer at no charge, using new or remanufactured parts.

F. When it Ends: **The Basic Limited Warranty lasts for three years from the date it begins or for 36,000 miles on the odometer, whichever occurs first.** The following items are covered only for one year or for 12,000 miles on the odometer, whichever occurs first...

The terms of the warranty explicitly provides Defendant would repair the Subject Vehicle for three years from the date it begins or for 36,000 miles, whichever occurred first.

A promise to repair defects that occur during a future period is the very definition of express warranty of future performance, not only under the Act (Civ.Code, § 1791.2), but also in the California Uniform Commercial Code section 2313. Civil Code section 1791.2 defines an express warranty under the Act to include "[a] written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in the utility or performance; ..." *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 217.

If we adopted the position urged by respondent and held that a cause of action for breach of express warranty accrues on tender of delivery, before the seller has an opportunity to repair any defects, we would undermine the legislative purpose that the parties attempt to resolve any deficiencies in performance before resorting to the remedies provided in the Act. In light of our conclusion that actions for breach of warranty under the Act and under the California Uniform Commercial Code are governed by the same statute of limitations, the same rule of accrual must apply to both causes of action. Application of California

Uniform Commercial Code section 2725, subdivision (2) provides this consistency while meeting the policies of the Act. *Id.* at 219. (emphasis added).

Defendant's reliance on *Cardinal Health 301, Inc. v. Tyco Electronics Corp* is misplaced. There, the Court made a critical distinction to the holding in *Krieger*:

Krieger is also inapposite in that it provides an example of a warranty that explicitly extends to future performance because it contains an express time limit. **The automobile warranty stated the defendant would repair defects for 36 months or the first 36,000 miles, whichever occurs first—thus creating a defined three-year outer limit for the warranty period.** (*Krieger, supra*, 234 Cal.App.3d at p. 216, 285 Cal.Rptr. 717.) Moreover, **the *Krieger* court focused on the promise to repair the vehicle during the warranty period.** The court stated: "A promise to repair defects that occur during a future period is the very definition of express warranty of future performance...." (*Id.* at p. 217, 285 Cal.Rptr. 717.) **Here, the warranty did not include a similar promise to repair.** *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 133. (emphasis added)

The warranty at issue here provides the same explicit promise as discussed in *Krieger* and *Cardinal Health*. As such, the exception provided in Commercial Code § 2725(2) applies. Plaintiff pleaded that he discovered Defendant's wrongful conduct shortly before the filing of the complaint, as the Subject Vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. Defendants' demurrer is overruled to the First, Second, and Third Causes of Action.

2. Fourth Cause of Action for Breach of the Implied Warranty of Merchantability (Civil Code §§ 1791.1, 1794, and 1795.5):

Defendant argues that the statute of limitations for implied warranty claims generally begins to run at the time of sale and delivery, not when the defect is discovered. Additionally, Code of Civil Procedure § 1791.1(c) imposes a one-year cap that is not subject to tolling, delayed discovery or equitable extensions. Defendant asserts that the vehicle was sold on June 29, 2020, and under § 1791.1(c), the implied warranty expired no later than June 29, 2021. Plaintiff failed to plead any facts of a defect within this time period. Plaintiff's Complaint was filed in March 2025 and is accordingly time-barred.

Plaintiff argues that § 1791.1(c) is not a statute of limitations but rather it creates a limited prospective duration for the implied warranty of merchantability. Plaintiff further contends that the statute of limitations on the Implied Warranty of Merchantability also does not accrue until the breach is or should have been discovered, which is properly alleged in the Complaint.

Code of Civil Procedure § 1791.1(c) provides that:

The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but **in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.** Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.
(emphasis added)

Defendant's argument contradicts the Legislature's intent and relevant case law. In *Mexia v. Rinker Boat Co.*, the Court of Appeal held that the provision of the Song-Beverly Consumer Warranty Act defining the duration of the implied warranty of merchantability merely creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering latent defects or for giving notice to the seller. (2009) 174 Cal, App.4th 1297. The *Mexia* court further held that a consumer's action was not barred by the consumer's failure to report a defect to the seller within the duration of the implied warranty. *Id.* at 1306. The one-year period in § 1791.1(c) defines when the warranty is operative — not when a lawsuit must be commenced. *Id.*

The duration provision provides, in essence, that the **duration of the implied warranty of merchantability shall be the same as the duration of any reasonable express warranty that accompanies the product, but in no event shorter than 60 days or longer than one year.** (Civ.Code § 1791.1, subd. (c).) **There is nothing that suggests a requirement that the purchaser discover and report to the seller a latent defect within that time period.** If the Legislature intended to create a deadline by which a purchaser of goods covered by the Song-Beverly Act must report a defect to the seller, it had a ready model for doing so. As discussed above, section 2607 of the Uniform Commercial Code provides that when a buyer has accepted a tender of goods, he or she “must, within a reasonable time after he or she discovers or should have discovered any breach, notify the seller of breach or be barred from any remedy....” (U.Com.Code, § 2607, subd. (3)(A).) **If the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could have easily done so. It did not.** *Id.* at 1310 (emphasis added).

Plaintiff purchased the vehicle on June 29, 2020, and filed suit on March 5, 2025. Plaintiff alleges that an engine defect existed and was discovered during this period, which was not known at the time of purchase. Whether the four-year limitations period began to run at the time of purchase or upon discovery of the defect is a factual question not resolvable on demurrer. Defendants' demurrer is overruled to the Fourth Cause of Action.

3. Sixth Cause of Action for Fraudulent Inducement – Concealment:

Defendant argues that Plaintiff's claim is barred pursuant to Code of Civil Procedure § 338(d) which provides a three-year statute of limitations for fraud-based claims. As Plaintiff alleges that Defendant concealed material facts about the vehicle's alleged defects, intending to induce Plaintiff to purchase it, which he purchased on June 29, 2020, the statute of limitations began to run on the purchase date. In the absence of specific allegations to support tolling, the statute of limitations expired on June 29, 2023. Defendant asserts that Plaintiff failed to plead actionable fraud which precludes any tolling arguments.

Plaintiff claims the fraud claim is timely because the limitations period runs from the date of discovery, not from the date of the transaction. However, even if measured from the date of sale, the tolling mandated by Emergency Rule 9 added 178 days to any limitations period, which combined with the delayed discovery and repair doctrine principles, Plaintiff's claims are not time barred.

Code of Civil Procedure § 338(d) provides a three-year statute of limitations on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.

[Section 338] also codifies the delayed discovery rule, providing that a cause of action for fraud ' "is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." ' (*Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35, 3 Cal.Rptr.3d 330; see § 338, subd. (d).) The date a complaining party learns, or at least is put on notice, that a representation was false is the date the statute starts running. (§ 338, subd. (d).)" (*Prakashpalan*, supra, 223 Cal.App.4th at p. 1123, 167 Cal.Rptr.3d 832, fn. omitted.) *Britton v. Girardi* (2015) 235 Cal.App.4th 721, 733.

The fraudulent concealment doctrine will also toll the statute of limitations. " '[T]he ground of relief is that the defendant, having by fraud or deceit concealed material facts and by misrepresentations hindered the plaintiff from bringing an action within the statutory period, is estopped from taking advantage of his own wrong.' (*Pashley v. Pacific Elec. Ry. Co.* (1944) 25 Cal.2d 226, 231, 153 P.2d 325.) "To take advantage of this doctrine ' "the plaintiff must show ... the substantive elements of fraud ... and ... an excuse for late discovery of the facts." ' (*Snapp & Associates Ins. Services, Inc. v. Robertson* (2002) 96 Cal.App.4th 884, 890 [117 Cal.Rptr.2d 331].)" (*Prakashpalan*, supra, 223 Cal.App.4th at p. 1123, 167 Cal.Rptr.3d 832.) *Id.* at 734.

Plaintiff alleged that he discovered Defendant's wrongful conduct shortly before filing the Complaint, as the subject vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. (Complaint ¶ 38). As such, the statute of

limitations did not begin to run until the date of the discovery. Plaintiff's Complaint was filed on March 5, 2025. Thus, Plaintiff has adequately plead he did not become aware of the existence of the wrongful conduct until around this time period which confirms the statute of limitations period has not run.

Beyond the statute of limitations, Defendant further argues that Plaintiff's fraudulent concealment claim fails for lack of specificity as he failed to allege specific misrepresentations, omissions, and intent to deceive. Plaintiff asserts that the specificity requirement is relaxed in concealment cases and the Complaint alleges each element of fraud.

"As with all fraud claims, the necessary elements of a concealment/suppression claim consist of ' **"(1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage."** ' ' " (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1185–1186 , 175 Cal.Rptr.3d 820. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship. (*Id.* at pp. 1186–1187.) Fraud, including concealment, must be pleaded with specificity. (Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 132 , 61 Cal.Rptr.3d 221. *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843–844.

In *Dhital*, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car. *Id.* at 844. The court reversed the trial court's order sustaining Nissan's demurrer to the claim for fraudulent inducement by concealment.

Similarly here, Plaintiff alleged that Defendant concealed the Engine Defect, that Defendant knew of the defect before sale, that Defendant intended to induce reliance by concealing it, that Plaintiff justifiably relied and would not have purchased the Subject Vehicle had he known, and that Plaintiff suffered damages.

Defendant argues that it had no duty to disclose as there was no direct transactional relationship with Plaintiff.

A duty to disclose a material fact can arise where the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge). *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40. This type of relationship is created by **direct dealings between parties** from which a duty to disclose facts material to the transaction arises. *Id.* at 41. (emphasis added)

Plaintiff argues Defendant owed a duty to disclose as he entered into a warranty contract with Defendant regarding the subject vehicle, which constitutes a direct contractual relationship necessitating a duty to disclose. (Complaint ¶ 7).

Defendant asserts that Plaintiff failed to plead fraud with specificity to establish any duty to disclose. In *Dhital*, the court was unpersuaded by Nissan's argument that plaintiffs failed to plead the existence of a buyer-seller relationship between the parties because plaintiffs purchased the vehicle from a Nissan dealership as opposed to Nissan itself. *Id.* However, Plaintiffs alleged that they purchased the vehicle from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. 84 Cal.App.5th at 844.

A critical distinction arises here. Plaintiff alleged he entered into a warranty contract with Defendant regarding the subject vehicle, which was manufactured and or distributed by Defendant. (Complaint ¶ 7) and that Defendant "committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle equipped with he 5.7L engine was defective..." (Complaint ¶ 65). The Complaint as plead is conclusory and does not plead how the warranty relationship was formed, where/from whom the vehicle was purchased or whether they are an agent/authorized dealer of Defendant's authorized to enter into warranty contracts. Defendant's demurrer is sustained to the Sixth Cause of Action, with leave to amend.

MOTION TO STRIKE

Pursuant to Code of Civil Procedure § 436, Defendant moves to strike specified portions of Plaintiff's FAC. On July 13, 2026, Plaintiff filed an opposition. Defendant filed a Reply on July 16, 2026.

Defendant moves to strike the following portions of the Complaint: Prayer, item (e), Page 12, line 7: "For punitive damages."

Legal Principles

A motion to strike is generally used to address defects appearing on the face of a pleading that are not subject to demurrer. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) "The court may, upon a motion [to strike] ..., or at any time in its discretion ... [¶] ... [s]trike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436, subd. (a).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or from any matter which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) On a motion to strike the trial court must read the complaint as a whole, considering all parts in their context, and must assume the truth of all well-pleaded allegations. (*Courtesy Ambulance*, supra, 8 Cal.App.4th at p. 1519.)

Discussion

Defendant argues that Plaintiff's claim for punitive damages should be stricken, as the Fraudulent Inducement – Concealment claim fails as a matter of law. Additionally, Plaintiff does not plead facts sufficient for punitive damages against a corporate entity, as Plaintiff does not allege an officer, director or managing agent of FCA US authorized, ratified or personally engaged in any oppressive, malicious, or fraudulent conduct as required. Lastly, Defendant asserts the claim for punitive damages must be struck because it is barred by the statute of limitations and economic loss rule.

Plaintiff argues that the Complaint alleges fraud which allows for punitive damages. Additionally, punitive damages are allowed under Code of Civil Procedure § 3294 for violations of other statutes as Plaintiff acted with oppression, fraud, or malice by knowingly concealing an engine defect and failing to repurchase the vehicle, instead allowing it to be driven with potentially dangerous consequences. Lastly, Plaintiff asserts that at the pleading stage, Plaintiff need only allege the ultimate fact of authorization or ratification, and the detailed allegations of Defendant's institutional knowledge and deliberate concealment permit that inference pertaining to punitive damages for a corporate defendant.

Having sustained Defendant's demurrer to the Sixth Cause of Action for Fraudulent Inducement – Concealment, the Court limits its review to facts plead within the First, Second, Third, and Fourth Causes of Action.

Civil Code section 3294 allows a plaintiff to recover exemplary (or "punitive") damages "[i]n an action for the breach of an obligation not arising from contract, where it is proven be clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (a).) For the purposes of awarding exemplary damages, " '[m]alice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) " 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) " 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of

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oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. *Id.* at subd. (b).

The Court finds that the Complaint fails to allege Defendant acted with oppression, malice or fraud. In particular, as a corporate defendant, Plaintiff failed to allege that an officer, director, or managing agent of the corporation acted with oppression, fraud, or malice. Defendant's motion to strike is granted, with leave to amend.

TENTATIVE RULING #12:

DEFENDANT'S DEMURRER IS OVERRULED AS TO PLAINTIFF'S FIRST, SECOND, THIRD AND FOURTH CAUSES OF ACTION. DEFENDANT'S DEMURRER AS TO THE SIXTH CAUSE OF ACTION IS SUSTAINED WITH LEAVE TO AMEND.

DEFENDANT'S MOTION TO STRIKE PRAYER, ITEM (E), PAGE 12, LINE 7: "FOR PUNITIVE DAMAGES" IS GRANTED, WITH LEAVE TO AMEND.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.